

Award
FINRA Dispute Resolution Services

In the Matter of the Arbitration Between:

Claimant

UBS Financial Services Inc.

Case Number: 25-01804

vs.

Respondent

Richard J. Panico

Hearing Site: Columbus, Ohio

Awards are rendered by independent arbitrators who are chosen by the parties to issue final, binding decisions. FINRA makes available an arbitration forum—pursuant to rules approved by the SEC—but has no part in deciding the award.

Nature of the Dispute: Member vs. Associated Person

REPRESENTATION OF PARTIES

For Claimant UBS Financial Services Inc. (“Claimant”): Laurie A. Perez, Esq. and Anna R. Ranger, Esq., Howard & Howard PLLC, Chicago, Illinois.

Respondent Richard Joseph Panico (“Respondent”) did not enter an appearance.

CASE INFORMATION

Statement of Claim filed on or about: August 26, 2025.

Claimant signed the Submission Agreement: July 30, 2025.

CASE SUMMARY

In the Statement of Claim, Claimant asserted the causes of action of breach of promissory note and unjust enrichment.

RELIEF REQUESTED

In the Statement of Claim, Claimant requested: damages in the amount of \$1,117,020.03 plus accrued interest and late fees as provided in the promissory note; costs of arbitration, including filing fees and attorneys’ fees; and such other and further relief as may be just and proper.

OTHER ISSUES CONSIDERED AND DECIDED

The Arbitrator acknowledges having read the pleadings and other materials filed by the parties.

Respondent did not file a Statement of Answer. Accordingly, this matter proceeded pursuant to Rule 13806(e)(1) of the Code of Arbitration Procedure ("Code") (effective October 16, 2023).

The Arbitrator determined that Respondent was served with the Claim Notification letter dated September 2, 2025, by regular mail, and the Overdue Notice (including the Statement of Claim) dated October 23, 2025, by regular and FedEx mail, as evidenced by the FedEx tracking information available online. The Arbitrator also determined that Respondent was served with the Notification of Arbitration dated November 13, 2025, by regular and FedEx mail, as evidenced by the FedEx tracking information available online.

The Claim Notification letter notified Respondent that FINRA rules require parties to use the online DR Portal on a mandatory basis (except pro se investors) and that failure to register for the DR Portal will prevent the submission of pleadings, selection of arbitrators, and receipt of notification relating to case information and deadlines. Respondent failed to register for the DR Portal.

The Arbitrator determined that Respondent is, therefore, bound by the Arbitrator's ruling and determination.

AWARD

After considering the pleadings, the Arbitrator has decided and determined in full and final resolution of the issues submitted for determination as follows:

1. Respondent is liable for and shall pay to Claimant the sum of \$1,117,020.03.
2. Respondent is liable for and shall pay to Claimant interest on the above-stated sum at the rate of 2.97% per annum with the daily calculation based on a 360 day year, from April 26, 2024, until the Award is paid in full.
3. Respondent is liable for and shall pay to Claimant the sum of \$10,048.60 in attorneys' fees pursuant to the promissory note.
4. Respondent is liable for and shall pay to Claimant \$300.00 to reimburse Claimant for the Paper Decision Fee previously paid to FINRA Dispute Resolution Services.
5. Any and all claims for relief not specifically addressed herein, including any requests for punitive damages, treble damages, and attorneys' fees, are denied.

FEES

Pursuant to the Code, Claimant has paid to FINRA Dispute Resolution Services the \$4,800.00 Member Surcharge and \$9,570.00 Member Process Fee previously invoiced.

Claimant has also paid to FINRA Dispute Resolution Services the \$2,690.00 non-refundable portion of the filing fee and the \$300.00 Paper Decision Fee.

ARBITRATOR

Jim Geiger

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Sole Public Arbitrator

I, the undersigned Arbitrator, do hereby affirm that I am the individual described herein and who executed this instrument, which is my award.

Arbitrator's Signature

Jim Geiger

Jim Geiger
Sole Public Arbitrator

12/28/2025

Signature Date

Awards are rendered by independent arbitrators who are chosen by the parties to issue final, binding decisions. FINRA makes available an arbitration forum—pursuant to rules approved by the SEC—but has no part in deciding the award.

December 30, 2025

Date of Service (For FINRA Dispute Resolution Services use only)